UNDEFIN-01 LGIBBENS

CERTIFICATE OF LIABILITY INSURANCE

DATE (MM/DD/YYYY) 9/17/2026

THIS CERTIFICATE IS ISSUED AS A MATTER OF INFORMATION ONLY AND CONFERS NO RIGHTS UPON THE CERTIFICATE HOLDER. THIS CERTIFICATE DOES NOT AFFIRMATIVELY OR NEGATIVELY AMEND, EXTEND OR ALTER THE COVERAGE AFFORDED BY THE POLICIES BELOW. THIS CERTIFICATE OF INSURANCE DOES NOT CONSTITUTE A CONTRACT BETWEEN THE ISSUING INSURER(S), AUTHORIZED REPRESENTATIVE OR PRODUCER, AND THE CERTIFICATE HOLDER.

IMPORTANT: If the certificate holder is an ADDITIONAL INSURED, the policy(ies) must have ADDITIONAL INSURED provisions or be endorsed. If SUBROGATION IS WAIVED, subject to the terms and conditions of the policy, certain policies may require an endorsement. A statement on this certificate does not confer rights to the certificate holder in lieu of such endorsement(s).

PRODUCER	CONTACT NAME: Linda Gibbens	
WAFD Insurance Group, Inc. 513 Cleveland Ave Caldwell, ID 83605	PHONE (A/C, No, Ext): (208) 344-6565	FAX (A/C, No): (208) 344-7398
	E-MAIL ADDRESS: lindag@wafdinsurance.com	
	INSURER(S) AFFORDING COVERAGE	NAIC #
	INSURER A : Western National Mutual Insurance Company	15377
INSURED	INSURER B :	
Undefined 119 1st Avenue NW #370 Ephrata, WA 98823	INSURER C :	
	INSURER D :	
	INSURER E :	
	INSURER F :	

COVERAGES **CERTIFICATE NUMBER:** **REVISION NUMBER:**

THIS IS TO CERTIFY THAT THE POLICIES OF INSURANCE LISTED BELOW HAVE BEEN ISSUED TO THE INSURED NAMED ABOVE FOR THE POLICY PERIOD INDICATED. NOTWITHSTANDING ANY REQUIREMENT, TERM OR CONDITION OF ANY CONTRACT OR OTHER DOCUMENT WITH RESPECT TO WHICH THIS CERTIFICATE MAY BE ISSUED OR MAY PERTAIN, THE INSURANCE AFFORDED BY THE POLICIES DESCRIBED HEREIN IS SUBJECT TO ALL THE TERMS, EXCLUSIONS AND CONDITIONS OF SUCH POLICIES. LIMITS SHOWN MAY HAVE BEEN REDUCED BY PAID CLAIMS.

INSR LTR	TYPE OF INSURANCE	ADDL INSD	SUBR WVD	POLICY NUMBER	POLICY EFF (MM/DD/YYYY)	POLICY EXP (MM/DD/YYYY)	LIMITS	
A	X COMMERCIAL GENERAL LIABILITY						EACH OCCURRENCE	$ 1,000,000
	[ ] CLAIMS-MADE [X] OCCUR	X		0001806521	8/11/2026	8/11/2027	DAMAGE TO RENTED PREMISES (Ea occurrence)	$ 100,000
							MED EXP (Any one person)	$ 5,000
							PERSONAL & ADV INJURY	$ 1,000,000
	GEN'L AGGREGATE LIMIT APPLIES PER:						GENERAL AGGREGATE	$ 2,000,000
	X POLICY [ ] PRO-JECT [ ] LOC						PRODUCTS - COMP/OP AGG	$ 2,000,000
	[ ] OTHER:							$
	AUTOMOBILE LIABILITY						COMBINED SINGLE LIMIT (Ea accident)	$
	[ ] ANY AUTO						BODILY INJURY (Per person)	$
	[ ] OWNED AUTOS ONLY [ ] SCHEDULED AUTOS						BODILY INJURY (Per accident)	$
	[ ] HIRED AUTOS ONLY [ ] NON-OWNED AUTOS ONLY						PROPERTY DAMAGE (Per accident)	$
								$
	[ ] UMBRELLA LIAB [ ] OCCUR						EACH OCCURRENCE	$
	[ ] EXCESS LIAB [ ] CLAIMS-MADE						AGGREGATE	$
	[ ] DED [ ] RETENTION $							$
	WORKERS COMPENSATION AND EMPLOYERS' LIABILITY Y / N						[ ] PER STATUTE [ ] OTH-ER	
	ANY PROPRIETOR/PARTNER/EXECUTIVE OFFICER/MEMBER EXCLUDED? [ ] (Mandatory in NH)	N / A					E.L. EACH ACCIDENT	$
	If yes, describe under DESCRIPTION OF OPERATIONS below						E.L. DISEASE - EA EMPLOYEE	$
							E.L. DISEASE - POLICY LIMIT	$

DESCRIPTION OF OPERATIONS / LOCATIONS / VEHICLES (ACORD 101, Additional Remarks Schedule, may be attached if more space is required)

CG MU 1078 06 22 GENERAL LIABILITY SPECIALTY SOLUTIONS ENHANCEMENT

Re: Event November 13th, 2026

CERTIFICATE HOLDER

Pan Eros Foundation d/b/a Gallery Erato
309 1st Ave S
Seattle, WA 98104

CANCELLATION

SHOULD ANY OF THE ABOVE DESCRIBED POLICIES BE CANCELLED BEFORE THE EXPIRATION DATE THEREOF, NOTICE WILL BE DELIVERED IN ACCORDANCE WITH THE POLICY PROVISIONS.

AUTHORIZED REPRESENTATIVE

Ted Bell

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THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

GENERAL LIABILITY SPECIALTY SOLUTIONS ENHANCEMENT

This endorsement modified insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE FORM (CG 00 01)

SUMMARY OF COVERAGES

Description	Limit Of Insurance
Abduction	$50,000 per Abduction/$50,000 Aggregate/$1,000 deductible
Additional Insured - Broad Form Vendors	Included
Additional Insured - Lessor Of Leased Equipment	Included
Additional Insured - Managers Or Lessors Of Premises	Included
Additional Insured - State Or Political Subdivisions - Permits	Included
Additional Insureds By Written Contract	Included
Broad Form Property Damage	$25,000 Per Occurrence
Broad Knowledge/Notice Of Occurrence	Included
Damage To Premises Rented To You	$300,000 Any One Premises
Designated Location(s) - General Aggregate Limit	Included
Employee Bodily Injury To A Co-Employee	Included
Insured Contract Amended	Included
Medical And Dental Payments	$10,000 Medical Expense Limit
Mobile Equipment	Included
Non-Owned Watercraft	51 Feet
Occupational License Review Expense	$2,500 Per Review/$5,000 Aggregate
Property Damage Liability - Borrowed Equipment	$25,000 Occurrence/$50,000 Aggregate
Property Damage Liability - Elevator And Sidetrack Agreement	Included
Supplementary Payments Increased Limits	
Bail Bonds	$2,500
Loss Of Earnings Per Day	$1,000
Unintentional Failure To Disclose Hazards	Included
Waiver Of Transfer Of Rights Of Recovery Against Others To Us	Included

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The terms and conditions of this policy are amended as indicated below:

I. Non-Owned Watercraft

SECTION I - COVERAGES, COVERAGE A. BODILY INJURY AND PROPERTY DAMAGE, Exclusion **2.g. (2)** is revised as follows:

This exclusion does not apply to:

(2) A watercraft you do not own that is:

(a) Less than 51 feet long; and

(b) Not being used to carry persons or property for a charge;

This provision applies to any person, who with your expressed or implied consent, either uses or is responsible for the use of the watercraft.

This provision does not apply if the insured has any other insurance for "bodily injury" or "property damage" liability that would also be covered under this provision, whether the other insurance is primary, excess, contingent or on any other basis. In that case, this provision does not provide any insurance.

II. Damage To Premises Rented To You

Under **SECTION I - COVERAGES, COVERAGE A. BODILY INJURY AND PROPERTY DAMAGE**, the last paragraph of **2**. is deleted and replaced with the following:

Exclusions **c**. through **n**. do not apply to "Property Damage" to the premises while rented to you or temporarily occupied by you with permission of the owner. A separate Damage To Premises Rented To You Limit of Insurance applies to this coverage which is the greater of:

1. The Damage To Premises Rented To You Limit for Each Occurrence shown in the Declarations; or

2. $300,000

Under **Section III - LIMITS OF INSURANCE**, paragraph **6**. does not apply.

III. Supplementary Payments

SECTION I - COVERAGES, SUPPLEMENTARY PAYMENTS - COVERAGES A & B, are revised as follows:

1. In paragraph **2**., the limit of $250 for bail bonds is increased to $2,500.

2. In paragraph **4.,** the limit of $250 for daily loss of earnings is increased to $1,000.

IV. Medical And Dental Payments

Under **SECTION I - COVERAGES, COVERAGE C. MEDICAL PAYMENTS**, if **COVERAGE C. MEDICAL PAYMENTS**, is not otherwise excluded from this Coverage Part:

1. The Medical Payments Limit is changed to the greater of:

a. $10,000; or

b. The Medical Expenses Limit shown in the Declarations of this Coverage Part.

2. The provision, in **C.1.a.(2)** that the expenses must be incurred and reported to us within one year of the date of the accident, is increased to three years.

V. Broad Form Property Damage

Under **SECTION I - COVERAGE A**, Exclusion **2.j.** is amended as follows:

1. Paragraph **(3)** does not apply.

2. Paragraphs **(4)** and **(6)** do not apply to customer's property at your described premises.

We do not cover any property:

1. Subject to motor vehicle registration; or

2. While being used to perform construction operations.

Our limit for any one "occurrence" under this coverage provision is $25,000.

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The insurance afforded by reason of this provision is excess over any valid and collectible property insurance (including any deductible) available to the insured, and **SECTION IV - COMMERCIAL GENERAL LIABILITY CONDITIONS 4**. Other Insurance is changed accordingly.

VI. Occupational License Review Expense

The following is added under **SECTION I - COVERAGES, COVERAGE A. BODILY INJURY AND PROPERTY DAMAGE LIABILITY**:

1. Insuring Agreement

Subject to the per review and annual aggregate limits of insurance stated in this endorsement, we agree to pay the "insured" for reasonable and necessary covered expenses, as listed below, incurred and paid by the "insured" as a direct result of a "occupational license review", conducted by a governmental bureau, board, commission or department, occurring during the policy period and in the "coverage territory".

a. Covered Expenses include:

(1) Fees and expenses of any licensed independent investigative services or legal counsel, hired by the "insured" for the purpose of assisting or representing the "insured" at the "occupational license review"; and

(2) Costs of travel, accommodations, and meals incurred by the "insured" in order to appear before the governmental bureau, board, commission or department.

b. Exclusions

This coverage will not pay for:

(1) Hearing fees; or

(2) Fines, judgments, lawsuits, or settlement amounts as the result of or in conjunction with the "occupational license review"; or

(3) Expense(s) directly or indirectly caused or resulting from the fraudulent, dishonest, or criminal acts of the "insured", any director or officer of the "insured", or agents thereof, whether acting alone or in collusion with others; or

(4) Lost salary or wages claimed by or for any "insured" while preparing for or attending the "occupational license review".

2. For the purposes of the coverage provided by this provision, **SECTION III - LIMITS OF INSURANCE** is amended as follows:

With respect to this endorsement only, the following apply:

a. The per review limit of insurance shown in this endorsement is the most we will pay per review, regardless of the number of "insureds" reviewed or subject to the "occupational license review".

b. The annual aggregate limit of insurance shown in this endorsement is the most we will pay for all covered expenses for each policy period.

c. In the event that the "occupational license review" continues over more than one policy period, the expenses shall be limited to the annual aggregate applicable to the policy period when the license review began.

d. In no event will any expense claimed for an "occupational license review" be recoverable as expense for another "occupational license review".

e. The limits of insurance stated in this endorsement are not part of and are in addition to, the Liability Limits of Insurance shown in the Declarations for this policy.

3. For the purposes of the coverage provided by this provision, the following are added under **SECTION IV-COMMERCIAL GENERAL LIABILITY CONDITIONS:**

a. In the event of a "occupational license review" during the policy period, the "insured" will:

(1) Make every reasonable effort to give us immediate written notice and timely updates concurrent with activity regarding the "occupational license review";

(2) Provide us with the official report of the "occupational license review"; and

(3) Provide us with documentation, including receipts, for expenses claimed under this coverage.

b. The insurance under this endorsement will be excess over any other valid insurance or bond.

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4. For the purposes of the coverage provided by this provision, the following are added under **SECTION V - DEFINITIONS:**

   a. "Insured" as used in this endorsement means an employee of the Named Insured shown in the Declarations, but does not include leased or temporary workers or volunteers. "Insured" does not include the Named Insured, unless the Named Insured is an individual person operating as a sole proprietorship, or any other business, whether corporation, partnership, limited liability company or other organization. "Insured" only includes natural persons.

   b. "Occupational license review" means a formal or informal proceeding conducted by a governmental bureau, board, commission or department charged with regulating the "insured's" occupational license and involving the review, modification, denial, suspension, or nonrenewal of the "insured's" occupational license or involving disciplinary action against the "insured", including proceedings to impose a forfeiture or penalty; but "occupational license review" does not include a proceeding concerning any criminal or civil charge brought against the "insured".

VII. Abduction

The following is added under **SECTION I - COVERAGES, COVERAGE A. BODILY INJURY AND PROPERTY DAMAGE LIABILITY**:

1. Insuring Agreement

Subject to the limits, aggregate and deductible as stated in this endorsement, we agree to pay the insured for reasonable and necessary Covered Expenses, as listed below, incurred and paid by the insured or "Guardian(s)" as a direct result of an "abduction" occurring during the policy period and in the "coverage Territory", provided that such "abduction" is otherwise the subject of this endorsement hereunder. Payment of such Covered Expenses may continue until the earliest of the following unless otherwise stated:

a. Up to fourteen (14) days after the recovery of the "Covered Individual(s)"; or

b. Discovery of the death of the "Covered Individual(s)"; or

c. Twelve (12) months after the date of the "abduction".

Covered Expenses include the following incurred expenses:

a. Fees and expenses of any independent investigative services, provided that we have given prior consent to the use of such independent investigative services; and

b. Reward to an "Informant" for information leading to the recovery of the "Covered Individual(s)" and the arrest and conviction of the party(ies) responsible for the "abduction"; and

c. Fees and expenses of independent forensic analysts engaged by the insured or "Guardian(s)" with prior authorization from us; and

d. Fees and expenses of public relations consultants to assist in the location of the "Covered Individual(s)"; and

e. Publicity costs incurred solely and directly to assist in the resolution of an "abduction"; and

f. Costs of travel and accommodations incurred by the insured or "Guardian(s) while attempting to resolve an "abduction"; and

g. Rest and rehabilitation expenses including travel, lodging and meals of the "Covered Individual(s)" and "Guardian(s)" incurred by the "Guardian(s)" and paid by the insured following resolution of the loss covered hereunder. The total amount under this provision shall not exceed $10,000 for any single loss; and

h. Lost salary of "Guardian(s)", which is the amount of compensation paid at an annual rate including the average bonuses and commissions, that the "Guardian(s)" would normally have earned; and

i. Fees for psychological or psychiatric counseling for the benefit of "Guardian(s)", or siblings of the "Covered Individual(s)" beginning on the date of recovery of the "Covered Individual(s)", until the earliest of the following:

(1) Up to three (3) months after the recovery or discovery of the death of the "Covered Individual(s)"; or

(2) Twelve (12) months after the date of the "abduction"; and

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j. Fees for psychological or psychiatric counseling for the benefit of "Covered Individual(s)" beginning on the date of recovery of the "Covered Individual(s)" and continuing up to twelve (12) months thereafter; and

k. Medical services and hospitalization costs incurred for the "Covered Individual(s)" as a result of the "abduction" beginning on the date of recovery of the "Covered Individual(s)" and continuing up to twelve (12) months thereafter; and

l. Funeral and burial expenses of "Covered Individual(s)" resulting from an "abduction".

2. Exclusions

We will not pay any expense(s) directly or indirectly caused or resulting from:

a. The fraudulent, dishonest, or criminal acts of any "Insured", any director or officer of the "Insured", parents or "Guardian(s)" or agents thereof, whether acting alone or in collusion with others; or

b. Any legal liability or costs of defense for administrative, regulatory, judicial or other claims hearings or lawsuits arising out of the "abduction"; or

c. Payment of any "ransom" or demand for money.

For the purposes of the abduction coverage provided by this provision, **SECTION III - LIMITS OF INSURANCE** is amended as follows:

1. The Limits of Insurance shown on this Endorsement and the rules below fix the most that we will pay regardless of the number of:

a. Insureds;

b. Claims made or "suits" brought; or

c. Persons or organizations making claims or bring "suits".

2. The Aggregate Limit shown on this Endorsement is the most we will pay for all Covered Expenses for each policy period.

All expenses arising from an act or series of related acts involving one or more persons or an act error or event or a series of related acts, errors or events shall be treated as arising out of one "abduction". However we will not pay for any loss resulting from an "abduction" which is part of a series of related acts that began prior to the effective date of this insurance.

3. In no event will any expense claimed, incurred or paid under one "abduction" be recoverable under another "abduction".

4. The "abduction" limit is included as part of the Limits of Insurance under the Liability and Medical Expenses Aggregate Limit.

5. We will not pay for loss in any one "abduction" until the amount of loss exceeds the deductible shown on this Endorsement. We will than pay the amount of loss in excess of the deductible up to the applicable Limit of Insurance as shown in this Endorsement. The deductible will not reduce the Limit of Insurance.

For the purposes of the abduction coverage provided by this provision, the following are added under **SECTION IV- COMMERCIAL GENERAL LIABILITY CONDITIONS**:

1. In the event of an "abduction" during the Policy Period, the "Insured" will make every reasonable effort to:

(a) Determine that the "abduction" has actually occurred prior to incurring costs; and

(b) Give immediate oral and written notice to us with periodic and timely updates concurrent with activity occurring during the incident; and

(c) Immediately notify local, national or other appropriate law enforcement agency having jurisdiction over the matter.

2. Confidentiality

The "Insured" will use all reasonable efforts not to disclose the existence of this Endorsement.

3. Other Insurance

The insurance under this Endorsement will be excess over any other valid insurance.

4. Cooperation

You must cooperate with us in all matters pertaining to this insurance as stated in its terms and conditions.

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5. Due Diligence

You and every insured or "guardian" must exercise due diligence in doing all things reasonably practicable to avoid or diminish any loss covered under this insurance.

For the purposes of the abduction coverage provided by this provision, the following are added under **SECTION V - DEFINITIONS:**

1. "Abduction" means the wrongful and illegal seizure of a "Covered Individual(s)", by someone other than a "Guardian(s)" or an agent thereof, from the "premises" of the insured or on any other premises while such "Covered Individual(s)" are under the control of the insured occurring during the policy period. "Abduction" as used in this endorsement does not include the actions of any official acting within their lawful authority.

2. "Covered Individual(s)" means individual(s) under the care, custody and control of the insured.

3. "Informant" means any person, other than a "Covered Individual", providing information not otherwise obtainable solely in return for a reward offered by the insured.

4. "Guardian(s)" means the natural and legal Parent(s) or legal and appointed Guardian, step-Parent(s) or foster Parent(s) of a "Covered Individual(s)" regardless of who has legal custody.

5. "Premises" means any place the insured conducts business.

6. "Ransom" means a consideration paid or demanded for the release of a "Covered Individual(s)" from captivity.

VIII. Property Damage Liability - Elevators And Sidetrack Agreements

The following is added under **SECTION I - COVERAGES, COVERAGE A. BODILY INJURY AND PROPERTY DAMAGE LIABILITY**:

1. Exclusions **j. (3), (4)** and **(6)** do not apply to the use of elevators.

2. Exclusion **k**. does not apply to:

a. The use of elevators; or

b. Liability assumed under a sidetrack agreement.

The insurance afforded by reason of this provision is excess over any valid and collectible property insurance (including any deductible) available to the insured, and **SECTION IV - COMMERCIAL GENERAL LIABILITY CONDITIONS 4**. **Other Insurance** is changed accordingly.

IX. Designated Location(s)-General Aggregate Limit

The following is added under **SECTION I - COVERAGES, COVERAGE A. BODILY INJURY AND PROPERTY DAMAGE LIABILITY:**

1. For all sums which the insured becomes legally obligated to pay as damages caused by "occurrences" under **COVERAGE A (**Section I), and for all medical expenses caused by accidents under **COVERAGE C** (Section I), which can be attributed only to operations at a single designated "location" shown in the Decla- rations:

a. A separate Designated Location General Aggregate Limit applies to each designated "location", and that limit is equal to the amount of the General Aggregate Limit shown in the Declarations.

b. The Designated Location General Aggregate Limit is the most we will pay for the sum of all damages under **COVERAGE A,** except damages because of "bodily injury" or property damage" included in the "products-completed operations hazard", and for medical expenses under **COVERAGE C** regardless of the number of:

(1) Insureds;

(2) Claims made or "suits" brought; or

(3) Persons or organizations making claims or bringing "suits".

c. Any payments made under **COVERAGE A,** for damages or under **COVERAGE C** for medical expenses shall reduce the Designated Location General Aggregate Limit for that designated "location". Such payments shall not reduce the General Aggregate Limit shown in the Declarations nor shall they reduce any other Designated Location General Aggregate Limit for any other designated "location" also shown in the Declarations.

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d. The limits shown in the Declarations for Each Occurrence, Fire Damage and Medical Expense continue to apply. However, instead of being subject to the General Aggregate Limit shown in the Declarations, such limits will be subject to the applicable Designated Location General Aggregate Limit.

2. For all sums which the insured becomes legally obligated to pay as damages caused by "occurrences" under **COVERAGE A** (Section I), and for all medical expenses caused by accidents under **COVERAGE C** (Section I), which cannot be attributed only to operations at a single designated "location" shown in the Declarations:

a. Any payments made under **COVERAGE A** for damages or under **COVERAGE C** for medical expenses shall reduce the amount available under the General Aggregate Limit or the Products-Completed Operations Aggregate Limit, whichever is applicable; and

b. Such payments shall not reduce any Designated Location Aggregate Limit.

3. When coverage for liability arising out of the "products-completed operations hazard" is provided, any payments for damages because of "bodily injury" or "property damage" included in the "products-completed operations hazard" will reduce the Products-Completed Operations Aggregate Limit, and not reduce the General Aggregate Limit nor the Designated Location General Aggregate Limit.

4. The following is added under **SECTION V - DEFINITIONS**

"Location" means premises involving the same or connecting lots, or premises whose connection is interrupted only by a street, roadway, waterway or right-of-way of a railroad.

5. The provisions of **LIMITS OF INSURANCE** (SECTION III) not otherwise modified by this coverage shall continue to apply as stipulated.

X. Property Damage Liability - Borrowed Equipment

The following is added to Exclusion **j.** under **Coverage A**. (Section I):

Paragraph **(4)** of this exclusion does not apply to equipment which you borrow unless the "property damage" occurs while such equipment is being used by an insured at a job site.

Subject to all of the terms of **SECTION III - LIMITS OF INSURANCE**, the maximum limit in any one occurrence is $25,000 and an annual aggregate of $50,000.

This insurance afforded by reason of this provision is excess over any valid and collectible property insurance (including any deductible) available to you, and **SECTION IV - COMMERCIAL GENERAL LIABILITY CONDITIONS 4.** Other Insurance is changed accordingly.

XI. Additional Insureds By Written Contract

A. SECTION II - WHO IS AN INSURED is amended to include as an additional insured any person or organization that you are required to add as an additional insured to this policy by a written contract or written agreement that is:

1. Currently in effect or becoming effective during the term of this policy; and

2. Executed prior to the "bodily injury", "property damage", "personal and advertising injury".

B. The insurance provided to the additional insured applies as follows:

1. That person or organization is only an additional insured with respect to liability caused by your negligent acts or omissions at or from:

(a) Premises you own, rent, lease, or occupy or

(b) Your ongoing operations performed for the additional insured at the job indicated by written contract or agreement.

2. The limits of insurance applicable to the additional insured are those specified in the written contract or agreement or in the Declarations of this policy whichever is less. These limits of insurance are inclusive of and not in addition to the limits shown in the Declarations.

C. With respect to the insurance afforded these additional insureds, the following additional insured exclusion applies:

1. If the additional insured is an architect, engineer, or surveyor, this insurance does not apply to "bodily injury", "property damage", "personal and advertising injury" arising out of the rendering of or the failure to render any professional services by or for you, including:

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(a) The preparing, approving, or failing to prepare or approve maps, shop drawings, opinions, reports, surveys, field orders, change orders or drawings, designs or specifications; or

(b) Supervisory, inspection, architectural or engineering activities.

2. The insurance afforded the additional insured does not apply to:

(a) "Bodily injury" or "property damage" occurring after:

(1) All work, including materials, parts or equipment furnished in connection with such work, on the project (other than service, maintenance or repairs) to be performed by or on the behalf of the additional insured(s) at the site of the covered operations has been completed; or

(2) That portion of "your work" out of which the injury or damage arises has been put to its intended use by any person or organization other than the contractor or subcontractor engaged in performing operations for a principal as part of the same project.

XII. Additional Insured - State or Political Subdivisions - Permits

The following is added to **SECTION II - WHO IS AN INSURED**:

1. Any state or political subdivision which has issued a permit to you, subject to the following provisions:

a. This insurance applies only with respect to operations performed by you or on your behalf for which the state, governmental agency or political subdivision has issued a permit or authorization.

b. This insurance does not apply to:

(1) "Bodily injury", "property damage", "personal and advertising injury" arising out of operations performed for the federal government, state or municipality; or

(2) "Bodily injury' or "property damage" included within the "products-completed operations hazard".

XIII. Additional Insured - Managers Or Lessors of Premises

The following is added to **SECTION II - WHO IS AN INSURED**:

1. Any manager or lessor of premises shown in the Declarations is also an insured, but only with respect to liability arising out of the ownership, maintenance or use of that part of the premises leased to you and shown in the Declarations and subject to the following additional exclusions:

The following exclusions are added:

1. This insurance does not apply to:

a. Any "occurrence" which takes place after you cease to be a tenant in that premises.

b. Structural alterations, new construction or demolition operations performed by or on behalf of any manager or lessor of premises shown in the Declarations.

XIV. Additional Insured - Lessor of Leased Equipment

The following is added to **SECTION II - WHO IS AN INSURED**:

1. The person(s) or organization(s) who leases equipment to you for use in your business is also an insured, but only with respect to liability for "bodily injury", "property damage", "personal and advertising injury" caused, in whole or in part, by your negligent acts or omissions in the maintenance, operation or use of equipment leased to you by such person(s) or organization(s).

However, the insurance afforded to such additional insured:

a. Only applies to the extent permitted by law; and

b. Will not be broader than that which you are required by the contract or agreement to provide for such additional insured.

c. Does not apply to any "occurrence" which takes place after the equipment lease expires;

2. With respect to the insurance afforded to the Lessor, the following additional exclusions apply:

"Bodily injury" or "property damage" arising out of:

(1) The assumption of liability in a contract or agreement. This exclusion does not apply to liability for damages that the Lessor would have in the absence of the contract or agreement;

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(2) Any express warranty made by the Lessor;

(3) The demonstration, installation, servicing, inspections, adjustments, tests, repair, or maintenance operations by or for the Lessor;

(4) The negligence or strict liability of the Lessor for its own acts or or omissions or those of its employees or anyone else acting on its behalf; or

(5) Any failure on the part of the Lessor to provide information, instructions and/or warnings with respect to the maintenance, use or operation of the equipment.

XV. Additional Insured - Broad Form Vendors

The following is added to **SECTION II - WHO IS AN INSURED**:

1. Any person(s) or organization(s) (referred to below as vendor) with whom you agreed, because of a written contract or agreement to provide insurance is also an additional insured, but only with respect to "bodily injury" or "property damage" arising out of "your products" which are distributed or sold in the regular course of a vendor's business, subject to the following additional exclusions:

a. The insurance afforded the vendor does not apply to:

(1) "Bodily injury" or "property damage" for which the vendor is obligated to pay damages by reason of the assumption of liability in a contract or agreement. This exclusion does not apply to liability for damages that the vendor would have in the absence of the contract or agreement;

(2) Any express warranty unauthorized by you;

(3) Any physical or chemical change in the product made intentionally by the vendor;

(4) Repackaging, except when unpacked solely for the purpose of inspection; demonstration, testing, or the substitution of parts under instructions from the manufacturer, and then repackaged in the original container;

(5) Any failure to make such inspections, adjustments, tests, or servicing as the vendor has agreed to make or normally undertakes to make in the usual course of business, in connection with the distribution or sale of the products;

(6) Demonstration, installation, servicing or repair operations, except such operations performed at the vendor's premises in connection with the sale of the product.

(7) Products which, after distribution or sale by you, have been labeled or relabeled or used as a container, part or ingredient of any other thing or substance by or for the vendor; or

(8) "Bodily injury" or "property damage" arising out of the sole negligence of the vendor for its own acts or omissions or those of its employees or anyone else acting on its behalf. However, this exclusion does not apply to:

(a) The exceptions contained in Sub-Paragraphs **(4)** or **(6)**; or

(b) Such inspections, adjustments, tests or servicing as the vendor has agreed to make or normally undertakes to make in the usual course of business, in connection with the distribution or sale of the products.

b. This insurance does not apply to any insured person or organization, from whom you have acquired such products, or any ingredient, part or container, entering into, accompanying or containing such products.

c. This provision does not apply to any vendor included as an insured by an endorsement issued by us and made part of the Coverage Part.

d. This provision does not apply if "bodily injury" or "property damage" included within the "products-complete hazards" is excluded either by the provisions of the Coverage Part or by endorsement.

XVI. Employee Bodily Injury To A Co-Employee

SECTION II- WHO IS AN INSURED paragraph 2.a.(1) is replaced by the following:

However, none of these "employees" or "volunteer workers" are insureds for "bodily injury" or "personal and advertising injury":

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(a) To you, to your partners or members (if you are a partnership or joint venture), to your members (if you are a limited liability company), to a co-"employee" while in the course of his or her employment or performing duties related to the conduct of your business, or to your other "volunteer workers" while performing duties related to the conduct of your business;

(b) To the spouse, child, parent, brother or sister of the co-"employee" or "volunteer worker" as a consequence of Paragragh **(1)(a)** above;

(c) For which there is any obligation to share damages with or repay someone else who must pay damages because of the injury described in Paragraph **(1)(a)** or **(b)** above; or

(d) Arising out of his or her providing or failing to provide professional health care services.

However, if a suit seeking damages for "bodily injury" or "personal and advertising injury" to any co-"employee" or other "volunteer worker" arising out of and in the course of the co-"employee's" or "volunteer worker's" employment or while performing duties related to the conduct of your business, or a suit seeking damages brought by the spouse, child, parent, brother or sister of the co-"employee" or other "volunteer worker", is brought against you or a co-"employee" or a "volunteer worker", we will reimburse the reasonable costs that you incur in providing a defense to the co-"employee" or "volunteer worker" against such matters. Any reimbursement made pursuant to this sub-section will be in addition to the limits of liability set forth in the Declarations.

XVII. Broad Knowledge/Notice Of Occurrence

The following is added under **SECTION IV - COMMERCIAL GENERAL LIABILITY CONDITIONS**:

The requirement in condition **2.a**. that you must see to it that we are notified of an "occurrence" or offense applies only when the "occurrence" or offense is known to:

1. You, if you are an individual;

2. A partner, if you are a partnership;

3. A member, if you are a joint venture;

4. An "Executive Officer" or insurance manager, if you are a corporation; or

5. A member, if you are a limited liability company.

The requirement in condition **2.b**. that you must see to it that we receive notice of a claim or "suit" will not be considered breached unless the breach occurs after such claim or "suit" is known to:

1. You, if you are an individual;

2. A partner, if you are a partnership;

3. A member, if you are a joint venture;

4. An "Executive Officer" or insurance manager, if you are a corporation; or

5. A member, if you are a limited liability company.

If you report an accident to your Workers' Compensation insurance carrier which later develops into a liability occurrence, coverage for which is provided by this policy, failure to report such occurrence to us at the time of the accident shall not be a violation of the notification of loss condition in this policy (**Condition 2. in Section IV**). It is understood and agreed, however, that you shall give notification of such occurrence to us as soon as you are made aware of the fact that the particular accident has developed into a liability claim.

XVIII. Unintentional Failure To Disclose Hazards

Under **SECTION IV - COMMERCIAL GENERAL LIABILITY CONDITIONS**, paragraph **6. Representations** is replaced by the following:

By accepting this policy, you agree;

1. The statements in the Declarations are accurate and complete;

2. Those statements are based upon representations you made to us; and

3. We have issued this policy in reliance upon your representations;

If you unintentionally fail to disclose any hazards existing at the inception date of your policy, we will not deny coverage under this Coverage Part because of such failure. However, this provision does not affect our right to collect additional premium or exercise our right of cancellation or non-renewal.

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XIX. Waiver Of Transfer Of Rights Of Recovery Against Others To Us

Under **SECTION IV - COMMERCIAL GENERAL LIABILITY CONDITIONS**, the paragraph **8. Transfer of Rights of Recovery Against Others To Us** condition is amended by the addition of the following:

We waive any right of recovery we may have against a person or organization because of payments we make for injury or damage arising out of your ongoing operations or "your work" done under a contract with that person or organization and include in the "products-completed operations hazard" when you have waived such right of recovery under a written contract with that person or organization. Such written contract must be:

1. Currently in effect or becoming effective during the term of this policy; and

2. Executed prior to the "bodily injury", "property damage", "personal and advertising injury"; or

3. Executed after "bodily injury", "property damage", "personal and advertising injury" if:

a. The terms and conditions of the written contract or written agreement had been agreed upon prior to the "bodily injury", "property damage", "personal and advertising injury"; and

b. The insured can definitively establish that the terms and conditions of the written contract or written agreement ultimately executed are the same as those which had been agreed upon prior to the "bodily injury", "property damage", "personal and advertising injury".

XX. Insured Contract

SECTION V - DEFINITIONS, "Insured Contract" paragraph **9.a**. is replaced by the following:

A contract for a lease of premises. However, that portion of the contract for a lease of premises that indemnifies any person or organization for damage by fire, lightning, explosion or sprinkler leakage to premises while rented to you or temporarily occupied by you with permission of the owner is not an "insured contract".

XXI. Mobile Equipment

The following is added under **SECTION V - DEFINITIONS**,**12. "Mobile Equipment**":

Paragraph **f.(1)** does not apply to self-propelled vehicles of less than 1,000 pounds gross vehicle weight.

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